Questions to Ask Before Anything Changes

Dad's home, accounts and estate: fifteen questions, sorted by who can answer, with room to write what they say.

Someone in the family has suggested adding a name to Dad's account, or changing the deed, and you'd like to ask a professional first. Nothing is pressing, so take these one conversation at a time. Bring the questions written down, ask them as they are, and write the answer under each one.

This guide doesn't answer the questions and doesn't say which matters most. That depends on Dad's own facts and on the rules in his state, and the people below are the ones who can say.

Dad

It's his home and his money. Ask when it suits him, and write down what he says in his own words.

1. Would you go through what you own with us, so the family has one dated list?

2. Whose name is on the deed to the house and on each of your accounts, as far as you remember?

3. Who did you name as beneficiary on your retirement accounts and insurance, and when did you last look at the forms?

Your Medicaid planner

The person who reviews your family's list and how each thing is owned, and helps sort your questions. Legal advice and legal documents belong to an elder law attorney.

1. What may Dad be able to keep, in his state and in his situation, if he ever needed Medicaid for long-term care?

2. Here is our list of what Dad owns and whose name is on each thing. What would you add or check?

3. Which of our questions are legal ones for an elder law attorney, which are financial ones for a licensed professional, and which can you help us with?

4. After which changes in Dad's life would you want to look at this list with us again?

An elder law attorney

The person for legal advice, and for any question about a deed, a trust or a change in how something is owned.

1. How would Dad's home be treated if he ever needed Medicaid for long-term care? Here is whose name is on the deed and who lives there.
2. What happens to protected assets after a parent receives Medicaid?
3. What is estate recovery, how is it different from Medicaid eligibility, and how does it work in Dad's state?
4. Here are the changes our family has talked about. What should we understand about each one before anything changes?
5. If Dad has a trust: here it is on our list. Would you review it?
6. If Dad is married: what should we understand about spouse-related protections in his state?

A licensed financial or insurance professional

For questions about retirement accounts, insurance policies and annuities.

1. Here are Dad's retirement accounts, insurance policies and annuities as we've listed them. What would you want to know about each one?
2. How do we confirm the beneficiary on file for each account and policy?

What this guide doesn't do

It doesn't answer these questions or tell you which one comes first. The answers depend on Dad's own facts and on the rules in his state, which vary and change, and they come from the people above. Nothing here is legal, financial or tax advice.

Ready for the next step?

You have your questions, and you know which kind of professional each one belongs to. The planning interview asks about your family's situation as a whole, so the answers have somewhere to go, and gives you a free planning report you can bring to your Medicaid planner, to an elder law attorney, or to any conversation about paying for care.

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